

1	Elected Personnel, LLC. vs. Southern California Plastics, Inc. 30-2026-01543019	<u>Application for Right to Attach Order</u> Plaintiff Elected Personnel, LLC's Application for Right to Attach Order and Order for Issuance of Writ of Attachment is CONTINUED to September 28, 2026 at 9:00 a.m. in Department N15 pursuant to the Order to Continue Hearing on Plaintiff's Application for Right to Attach Order and Order for Issuance of Writ of Attachment filed August 28, 2026 (ROA #48).
2	Pouraryan vs. Gates 30-2026-01538701	<u>Motion to Strike</u> Defendant Thomas Gates' Motion to Strike Portions of Plaintiff's Complaint is DENIED. Defendant Thomas Gates shall file an answer or other pleading in response to the Complaint within 10 days of service of the notice of ruling. (See Code Civ. Proc., § 472a, subd. (d); see also Code Civ. Proc., § 435, subd. (c).) <u>Pending Motion</u> Defendant Thomas Gates moves to strike the allegations regarding and the prayer for relief for punitive damages contained in the Complaint filed by Plaintiff Arshia Pouraryan. <u>Meet and Confer</u> A party moving to strike "shall meet and confer <i>in person or by telephone</i> with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike." (Code Civil Proc., § 435.5, subd. (a), italics added.) The meet and confer must occur at least 5 days before the date a motion to strike must be filed or the moving party shall be granted an automatic 30-day extension of time within which to file a motion to strike if the moving party files a declaration stating that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer. (Code Civil Proc., § 435.5, subd. (a)(2).) The motion to strike must include a declaration stating either:

		(A) The means by which the moving party met and conferred with the party who filed the pleading subject to the motion to strike, and that the parties did not reach an agreement resolving the objections raised by the motion to strike. (B) That the party who filed the pleading subject to the motion to strike failed to respond to the meet and confer request of the moving party or otherwise failed to meet and confer in good faith. (Code Civil Proc., § 435.5, subd. (a)(3).) Here, the declaration filed by Defendant shows that Defendant's Counsel sent a single "meet and confer e-mail" to Plaintiff's Counsel. (See Decl. of Aman A. Lal, ¶¶ 3-5, Exh. A.) Such efforts are insufficient as the parties are required to meet and confer in person or by telephone. However, "[a] determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike." (Code Civil Proc., § 435.5, subd. (a)(4).) Further, the motion is fully briefed. Therefore, the court will decide the motion on the merits. However, Defendant is encouraged to strictly comply with the requirements of the Civil Procedure Code and Rules of Court in the future. Future violations may result in the court disregarding Defendant's motion, opposition, or reply papers. <u>Standard for Motion to Strike</u> A party may move to strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) "Irrelevant" matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim, or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) A party may also request to strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Specifically, conclusory allegations that are not supported by factual allegations in the complaint
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		may be stricken. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) For example, prayers for relief that lack factual foundation may be stricken from a complaint. (See <i>Turman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63 [trial court properly struck prayer for punitive damages where complaint failed to allege sufficient facts to show that defendant acted with malice, oppression, or fraud].) The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. (See Code Civ. Proc., § 437.) In addition, pleadings are to be construed liberally with a view to substantial justice. (Code Civ. Proc., § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010).) "In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation." (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255, citations omitted.) <u>Striking Punitive Damages</u> To obtain punitive damages, a plaintiff must plead and prove one of the following: malice, oppression, or fraud. (See Civil Code, § 3294, subd. (a).) "Malice" is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civil Code, § 3294, subd. (a)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civil Code, § 3294, subd. (a)(2).) "Fraud" is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civil Code, § 3294, subd. (a)(3).)
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		["Malice and oppression may be inferred from the circumstances of a defendant's conduct"].) In this case, Defendant argues that the Complaint does not support an award of punitive damages because it fails to allege ultimate facts to show that Defendant acted with conscious disregard for the rights or safety of others, which is necessary to make out malice or oppression. (See Civil Code, § 3294, subd.s (a)(1), (a)(2) [when plaintiff seeks punitive damages based on either malice or oppression, plaintiff must make out conduct by defendant that is carried out with conscious disregard of the rights or safety of another person].) However, in <i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, the Supreme Court held that: One who willfully consumes alcoholic beverages to the point of intoxication, knowing that he thereafter must operate a motor vehicle, thereby combining sharply impaired physical and mental faculties with a vehicle capable of great force and speed, reasonably may be held to exhibit a conscious disregard of the safety of others. The effect may be lethal whether or not the driver had a prior history of drunk driving incidents. (<i>Id.</i> at p. 897.) There, the Supreme Court held that the allegations of the complaint were sufficient to support an award of punitive damages where it was plead that defendant operated an automobile while under the influence of alcohol, that defendant was "an alcoholic 'well aware of the serious nature of his alcoholism' and of his 'tendency, habit, history, practice, proclivity, or inclination to drive a motor vehicle while under the influence of alcohol,'" and that the defendant "was also aware of the dangerousness of his driving while intoxicated." (<i>Id.</i> at pp. 893, 896.) While the complaint in <i>Taylor v. Superior Court</i> also alleged "a history of prior arrests, convictions and mishaps" involving driving while under the influence of alcohol, the Supreme Court did not deems these to be "essential prerequisites to the assessment of punitive damages in drunk driving cases." (<i>Id.</i> at 896.) Similarly, the Court of Appeal in <i>Dawes v. Superior Court</i> (1980) 111 Cal.App.3d 82 held that the trial court had abused its discretion in striking a request for punitive damages where the complaint alleged that the defendant was driving while intoxicated and zigzagged in and out of traffic in excess of 65 miles per hour in a 35-mile per
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		hour zone, in a crowded beach recreation area at 1:30 on a weekend afternoon. (<i>Id.</i> at p. 86.) Here, the Complaint alleges that Defendant voluntarily consumed alcohol and then drove approximately 90 miles per hour in a 65-mile-per-hour zone, made an abrupt and unsafe movement across lanes of traffic, and rear-ended Plaintiff's vehicle. (See Compl., ¶¶ 10–11., 30.) The Complaint further pleads that the California Highway Patrol determined that Defendant was the sole cause of the collision based on driving under the influence and making an unsafe turn, and that Defendant was arrested at the scene for driving under the influence. (See Compl., ¶ 12.) Taken together, these allegations go beyond alleging that Defendant drove while intoxicated. They plead voluntary conduct taken in conscious and willful disregard for the rights and safety of others. (See Compl., ¶ 30.) Accepting these allegations as true, which the court must do for purposes of this motion, the Complaint sufficiently supports an award of the punitive damages. Therefore, the court will deny the motion to strike. Plaintiff shall give notice of this ruling.
3	Ahannavard vs. Ettefagh 30-2023-01360376	<u>Motion for Attorney's Fees</u> Defendant and Cross-Complainant Marja Ettefagh's Motion for Attorneys Fees is DENIED. <u>Pending Motion</u> Defendant and Cross-Complainant Marjan Ettefagh moves for an award of attorney's fees in the amount of \$31,920 and costs in the amount of \$2,669,], pursuant to [Civil Code section 1717. <u>Standard for Motion for Attorney's Fees (in General)</u> Generally, attorney's fees are borne by the party that incurred them. (See <i>Pederson v. Kennedy</i> (1982) 128 Cal.App.3d 976, 978-79). Therefore, a party may recover attorney's fees only if provided for by contract or statute. (See Code Civ. Proc., § 1033.5, subd. (a)(10); see also <i>LNSU # 1, LLC v. Alta Del Mar Coastal Collection Community Association</i> (2023))